MEDIA BRIEFING

Soldiers Against Tractors

What the Fuel Protest Deployment Reveals

The government has asked the Defence Forces to help remove vehicles blocking critical infrastructure. The legal basis is established, but the institutional implications are not.

Security Ireland

9 April 2026

THE ARGUMENT

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Minister for Justice Jim O'Callaghan has asked the Defence Forces to assist An Garda Síochána in removing vehicles from roads and fuel infrastructure as fuel price protests enter their third day. The mechanism is the *C70 form* — a Garda request for military aid to the civil power. The legal basis exists, but this deployment exposes four structural problems: a military too small for the tasks it is being given, selective invocation of 'critical infrastructure' rhetoric, unprecedented threat language with legal exposure, and a domestic military deployment that cuts against a century of institutional design.

Ireland cannot deploy its military against its citizens on Wednesday and underfund that same military on Thursday.

Can they do this?

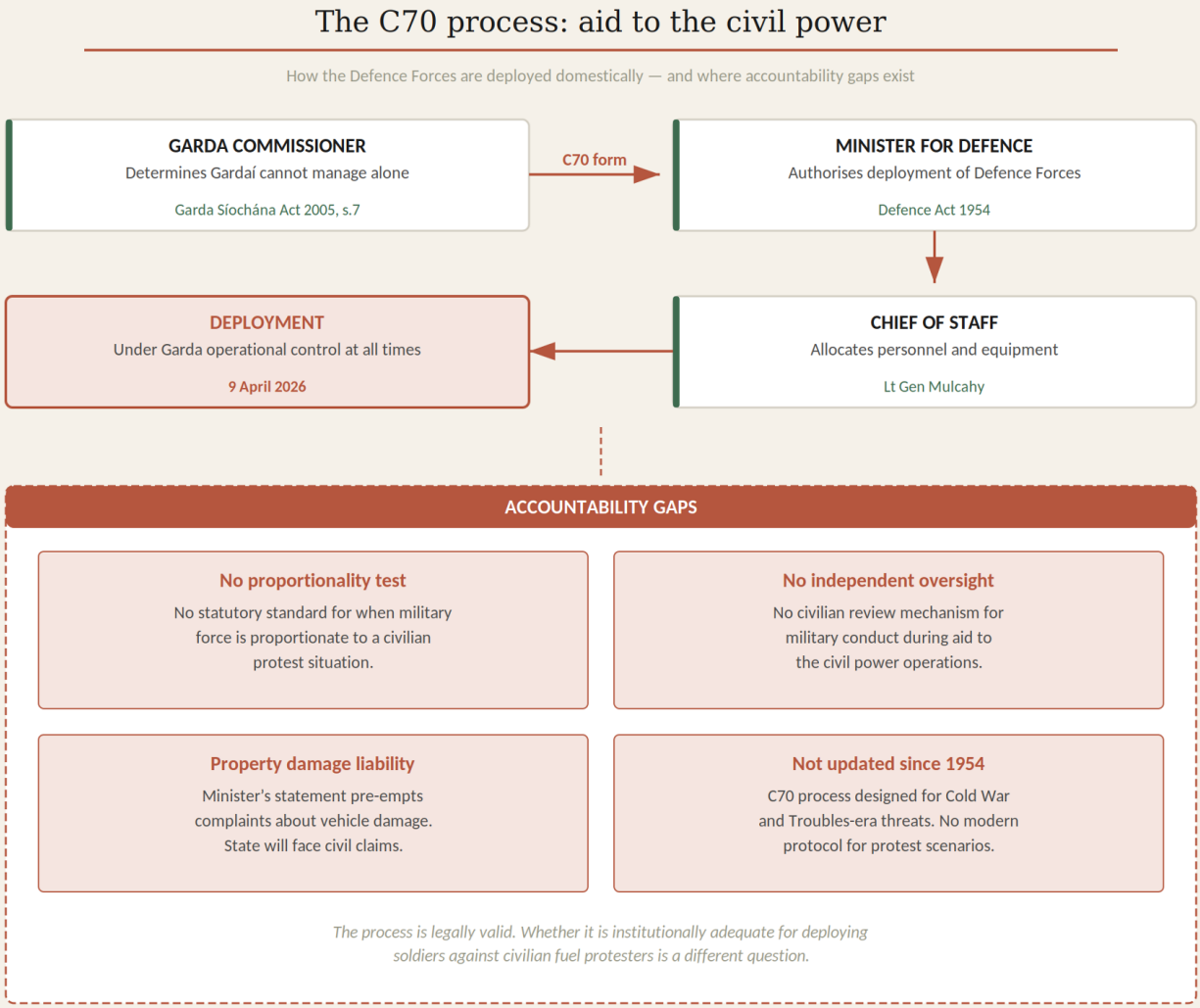

Figure 1: The C70 process for military aid to the civil power. The mechanism is legally established but the accountability framework has not been updated since the Defence Act 1954. Four gaps are identified: no proportionality test, no independent oversight, unresolved property damage liability, and no modern protocol for protest scenarios.

'Aid to the civil power' is one of the Defence Forces' statutory roles under the Defence Act 1954. The military assists the Gardaí when requested, under Garda operational control. This is not new: the Defence Forces have provided cash-in-transit escorts from 1978 to 2014, prison security at Portlaoise since 1974, explosive ordnance disposal, and fisheries protection. The C70 process is well established.

But there is a meaningful distinction between *routine aid to the civil power* — bomb disposal, security escorts, specialist capability the Gardaí lack — and *deploying soldiers to physically remove civilian vehicles from public roads during a protest*. The first supplements policing, whereas the second substitutes for it.

The question is not whether the government has the legal authority as it does, but what it signals about the institutional system when that authority is exercised in this way. The scope of 'aid to the civil power' has not been significantly updated since 1954. Thus, the legal basis is broad but under-specified for a modern democracy facing protests by its own citizens over energy prices.

What this exposes

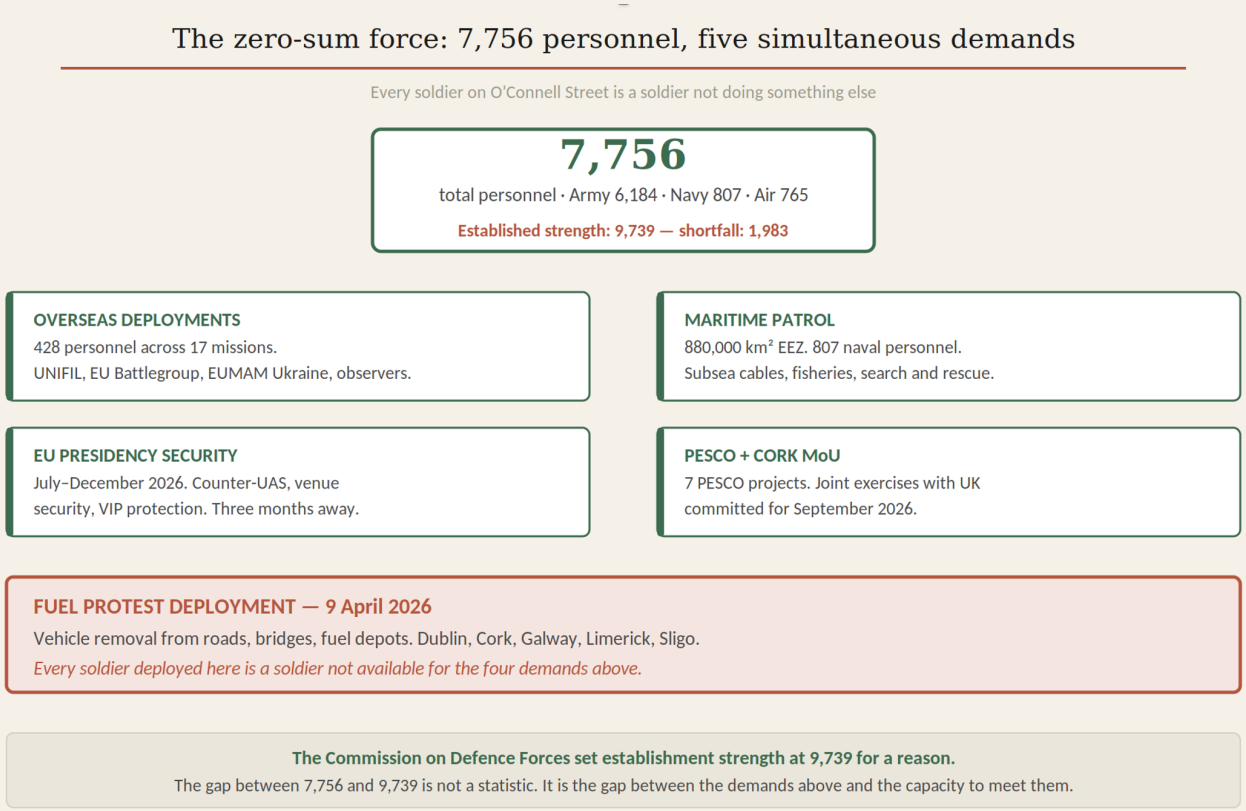

Figure 2: Five simultaneous demands on 7,756 personnel. The Defence Forces are approximately 2,000 members below established strength. Every operational deployment to protest management subtracts from the other four demands. The EU Presidency begins in three months.

1. A military with 7,756 personnel is being used as a heavy-vehicle removal service. The Defence Forces are approximately 2,000 members below their established strength of 9,739. The Commission on Defence Forces recommended 130 reforms; four years later, 54 have been completed. The government has privately acknowledged there is 'zero chance' of reaching personnel targets in any reasonable timeframe. These are the same forces being asked to remove tractors from O'Connell Bridge. Every soldier deployed to protest management is a soldier not training, not patrolling Ireland's 880,000 km² maritime zone, not building the capability the Commission identified as urgent.

2. 'Critical national infrastructure' cannot be invoked selectively. The Minister's statement frames the blockade of fuel depots and roads as an attack on critical infrastructure. This framing has consequences. Ireland's critical infrastructure — subsea cables carrying over 90% of transatlantic data traffic, an energy grid coupled to the UK, fuel supply chains dependent on a single refinery at Whitegate — is genuinely vulnerable. If blocking a fuel depot for two days warrants military deployment, what does the persistent under-protection of submarine cables warrant? The government is discovering that critical infrastructure resilience is not only a European security concept for Presidency briefings. It is a domestic operational requirement.

3. The language is unprecedented and legally exposed. The statement that vehicle owners 'should not complain later about any damage caused to those vehicles during removal' is extraordinary for a government communication. It reads as a pre-emptive waiver of liability for state-caused property damage. Vehicles are private property. Their removal, even when blocking public roads, must be proportionate. If military personnel damage vehicles during removal, the state will face civil claims. The aggressive framing may satisfy today's news cycle but creates tomorrow's legal exposure.

4. The 1923 pattern is repeating in miniature. Ireland's security architecture was shaped by a foundational decision: after the Civil War, the Free State government effectively dismantled the National Army to eliminate an alternative power centre. For a century, the institutional logic has been to keep military capability minimal and military visibility low. Deploying soldiers visibly against civilian protesters — farmers, hauliers,

people angry about diesel prices — cuts against this deep institutional grain. It is precisely the kind of domestic military deployment the system was designed to avoid.

The trade-offs

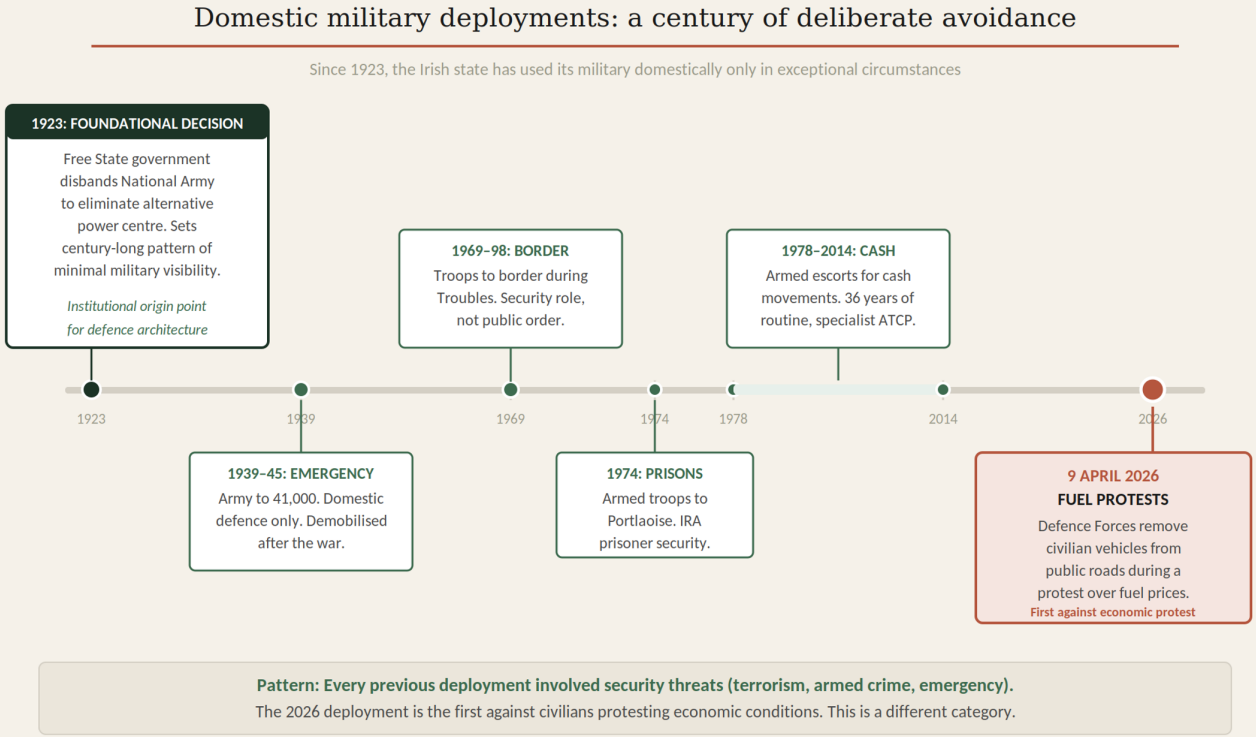

Figure 3: Domestic military deployments since 1923. Every previous deployment involved security threats: terrorism, armed crime, or constitutional emergency. The 2026 fuel protest deployment is the first against civilians protesting economic conditions.

The government faces a genuine dilemma. Fuel depots are blocked; the M50 has been closed; Luas services are suspended; Dublin Bus cannot operate cross-city routes; Dublin Airport is advising passengers to allow extra time; Dublin Fire Brigade has reported significant delays reaching emergencies. The Taoiseach has described the Whitegate refinery blockade as 'an act of national sabotage.' The disruption is real.

But the trade-offs of military deployment are also real.

Escalation risk. Soldiers removing tractors is a visual that changes the political dynamics. Protesters who might negotiate with Gardaí are less likely to negotiate with the military. The imagery of soldiers confronting farmers will resonate historically in ways the government may not have calculated.

Precedent. Once the military is deployed against civilian protest, the threshold for future deployment is lower. This is not a reversible decision in institutional terms. The next protest movement — housing, water charges, whatever comes next — now has a reference point.

Capability cost. Every operational deployment has a cost to training, readiness, and morale. The Defence Forces are already stretched. Diverting personnel to protest management subtracts from the capabilities Ireland is simultaneously trying to build for its EU Presidency, its PESCO commitments, and its bilateral cooperation with the UK under the Cork MoU.

International signal. Ireland assumes the EU Council Presidency in July. It will chair defence and security discussions for 27 member states. The image of Ireland deploying its military domestically against fuel protesters three months before the Presidency is *not* the signal of institutional maturity the government wants to send.

What should happen next

The immediate crisis will pass. Fuel prices are a political problem with political*, not military*, solutions; the government has tools — excise adjustments, targeted supports, strategic reserve management — that do not require military deployment. The underlying causes, rooted in energy price volatility driven by the Iran conflict, require diplomatic and economic responses.

But the institutional questions this moment has exposed will not pass. Three things deserve sustained attention.

First, the government should commission a formal review of the 'aid to the civil power' framework. The C70 process has not been significantly updated since the Defence Act 1954. Clear protocols for when military assistance is appropriate, what proportionality requires, and how accountability is maintained would serve both the Defence Forces and the public.

Second, the critical infrastructure argument cannot be deployed selectively. If fuel supply chains are critical national infrastructure worth military protection, then submarine cables, data centres, the energy interconnector, and the Whitegate refinery require a permanent protection framework — not ad hoc military deployment when a crisis arrives.

Third, a Defence Forces with fewer than 8,000 personnel cannot simultaneously build European security capability, meet overseas commitments, and serve as a domestic crisis response force. Something has to give. The fuel protests have made the Commission on Defence Forces' recommendations more urgent, not less. If the government is prepared to deploy the military domestically, it should be equally prepared to fund, staff, and equip it for the full range of tasks it is being asked to perform.

THE BOTTOM LINE

Ireland cannot deploy its military against its citizens on Wednesday and underfund that same military on Thursday. Today's decision has consequences that outlast today's crisis. The government has three months before assuming the EU Council Presidency. The question it must answer is not whether it had the legal authority to deploy — it did. The question is whether Ireland's institutional architecture is adequate for the demands now being placed on it, from domestic protest management to European security leadership. The evidence from this week suggests it is not.

A NOTE ON METHOD

This commentary draws on the analytical framework developed in Security Ireland's foundational working papers, including *Ireland's Defence Problem Isn't Neutrality* (on the five-layer institutional architecture that constrains Defence Forces capability) and *The UK–Ireland Security Interface* (on the structural asymmetry in the shared security domain). The legal analysis of 'aid to the civil power' draws on the Defence Act 1954 and subsequent scholarship on its scope and limitations. Personnel figures are from Department of Defence data as of December 2025.

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